Agenda Item No. 16

Staff Report

Date: July 9, 2026

To: Mayor McMillan and Councilmembers

From: Christa Johnson, Town Manager
Chief Mahoney, Ross Valley Fire Department

Subject: Adopt Resolution No. 2637 Calling for an Election for the Passage of the Ross Valley Paramedic Authority Four-Year Special Parcel Tax for the Tax Cycle 2027-2031 and Requesting Consolidation with the November 3, 2026, State-Wide General Election from the Marin County Board of Supervisors.

Recommendation
It is recommended that the Town Council adopt Resolution No. 2637 calling the November 3, 2026, calling for an election for renewal of the Ross Valley Paramedic Authority ("RVPA") four-year special parcel tax for 2027-2031 and requesting the Marin County Board of Supervisors consolidate the election with the Statewide General Election, in accordance with Elections Code §10002 and §10418.

Background/Discussion
The Ross Valley Paramedic Authority has provided paramedic and pre-hospital emergency medical care to the community for over 40 years. One of the oldest regional partnerships in Marin County, RVPA is a Joint Powers Authority formed in 1982 among the Cities/Towns of Corte Madera, Larkspur, Fairfax, Ross, and San Anselmo; the Kentfield Fire Protection District; the Sleepy Hollow Fire Protection District; and the County of Marin ("Member Agencies") to provide paramedic services in and across the Member Agencies' jurisdictions through a single public agency.

RVPA is funded primarily through special parcel tax revenues. Every four years the voters within each Member Agency's jurisdiction vote to fund the parcel tax for another four-year period. Voters have consistently approved the RVPA tax. The current tax expires on June 30, 2027. To maintain funding, each Member Agency must place the parcel tax on the ballot as a local ballot measure, which must be approved by two-thirds of the voters.

Under the proposed tax, each taxable residential unit is taxed at a rate of up to $107.50, and every 1000 square feet of developed nonresidential property, and is adjusted up to $4 per year. The current approved tax rate applies to residential units and every 1500 square feet for nonresidential uses through the end of fiscal year 2027. The proposed tax would apply to developed, nonresidential uses at every 1000 square feet. Additionally, the current adjustment rate would change from $3 to up to $4 per year.

During the period of the tax, the governing body of each Member Agency annually confirms the tax by adoption of a Resolution. RVPA recommends the annual increase in the tax within the limit every year based on the financial need of RVPA to maintain its service. The tax is not automatically increased $4 per year but rather may be up to that amount depending on the financial condition of RVPA.

Below are the tax rates:

- FY 26-27 (current) $103.50
- FY 27-28 Up to: $107.50
- FY 28-29 Up to: $111.00
- FY 29-30 Up to: $114.50
- FY 30-31 Up to: $118.00

The proposed ballot language is as follows:

To maintain local ambulance services staffed by paramedics available to respond to 9-1-1 emergencies, shall the Ross Valley Paramedic Authority measure be adopted continuing for four years the paramedic services special tax of up to $107.50/residential living unit or 1,000 square feet of developed nonresidential property, adjusted up to $4/year, generating approximately $111,000 annually, with annual audits, public spending disclosure and all funds for local paramedic services?

Upon passage of the RVPA tax measure by two-thirds of voters, the parcel tax becomes effective ten days after it is declared by the Town Council for the term of the next tax cycle. The Resolution also requests that the Marin County Board of Supervisors consolidate the local election with the Statewide General Election on November 3, 2026.

Fiscal Impacts

The Town of Ross will be responsible for reimbursing the County of Marin for all costs associated with the conduct of this election, including election administration, printing, and canvassing services provided by the Marin County Elections Department. The specific cost of the election will be determined by the County based on the Town's share of election expenses. Funds for this purpose are included in the Town's adopted budget for Fiscal Year 2026–2027.

Environmental Review

Adoption of a resolution calling an election is not a project subject to the California Environmental Quality Act (CEQA) and is categorically exempt from CEQA requirements. No environmental review is required.

Alternatives

No alternatives are recommended.

Attachments

1. Resolution No. 2637

ATTACHMENT 1

RESOLUTION NO. 2637

A RESOLUTION OF THE ROSS TOWN COUNCIL CALLING FOR A MUNICIPAL ELECTION TO BE HELD IN ITS JURISDICTION ON NOVEMBER 3, 2026, FOR THE PURPOSE OF SUBMITTING TO THE VOTERS A MEASURE AUTHORIZING THE CONTINUATION OF A SPECIAL PARCEL TAX FOR PARAMEDIC SERVICES AND REQUESTING THE MARIN COUNTY BOARD OF SUPERVISORS TO CONSOLIDATE SAID ELECTION WITH THE GENERAL ELECTION CONDUCTED ON THAT DATE

WHEREAS, the Ross Valley Paramedic Authority ("RVPA") is an eight member California Joint Powers Authority formed by agreement in 1982 pursuant to the California Joint Exercise of Powers Act, Gov. Code, §§ 6500 *et seq.*, by and among the Cities/Towns of Corte Madera, Larkspur, Fairfax, Ross, and San Anselmo; the Kentfield Fire Protection District; the Sleepy Hollow Fire Protection District; and the County of Marin ("Member Agencies") for the purpose of providing paramedic and pre-hospital emergency medical services throughout and across the Member Agencies' jurisdictional boundaries by a single, consolidated agency; and

WHEREAS, the Town of Ross has been a Member Agency of RVPA since its inception over 40 years ago; and

WHEREAS, the community has consistently received responsive, high-quality paramedic and pre-hospital emergency medical care from RVPA and the Ross Town Council wishes to maintain and ensure this service into the future; and

WHEREAS, RVPA is funded largely with tax revenues from its Member Agencies; and

WHEREAS, a statewide election will be held on November 3, 2026 ("General Election"); and

WHEREAS, California Government Code section 53722 allows the Town of Ross to submit to the voters a proposition for the imposition of a special tax to be approved by a two-thirds vote of the voters voting in an election on the issue; and

WHEREAS, the voters of the Town of Ross have consistently voted in favor of the RVPA special tax for paramedic services and last approved such a tax in 2022; and

WHEREAS, through the adoption of this Resolution, the Town Council of the Town of Ross desires to propose to its voters the renewal of an additional four years of the special tax in the amounts specified in the Ordinance attached hereto as Exhibit A, at the November 3, 2026 election; and

WHEREAS, the monies from the RVPA special tax are used exclusively for paramedic and pre-hospital emergency care services; and

WHEREAS, pursuant to California Elections Code sections 10403 *et seq.*, the Town of Ross may request consolidation of the election with any and all other elections to be held on November 3, 2026, and may request that the Marin County Registrar of Voters perform certain election services; and

WHEREAS, the Town of Ross desires that the election on the special tax measure be consolidated with the statewide General Election to be held on November 3, 2026; and

NOW, THEREFORE, BE IT RESOLVED as follows:

SECTION 1. RECITALS. The above recitals are true and correct and incorporated as findings herein.

SECTION 2. ELECTION CALLED. There is hereby called and ordered to be held in the Town of Ross of California on Tuesday, November 3, 2026, a General Municipal Election to submit to the voters the Ordinance, continuing a special parcel tax for the provision of paramedic and emergency medical services. The Ordinance is attached hereto as Exhibit "A" and incorporated herein by reference.

SECTION 3. BALLOT QUESTION. The special parcel tax measure shall be submitted to the voters on the ballot in the form of the following question:

To maintain local ambulance services staffed by paramedics available to respond to 9-1-1 emergencies, shall the Ross Valley Paramedic Authority measure be adopted continuing for four years the paramedic services special tax of up to $107.50/residential living unit or 1,000 square feet of developed nonresidential property, adjusted up to $4/year, generating approximately $111,000 annually, with annual audits, public spending disclosure and all funds for local paramedic services?	Yes No

SECTION 4. APPROVAL OF ORDINANCE. The Council of the Town of Ross hereby approves the Ordinance, the form thereof, and its submission to the voters at the November 3, 2026, election, as attached hereto as Exhibit "A" incorporated herein by reference. The measure shall not take effect unless and until approved by a vote of at least two-thirds of the voters voting on the question at the election.

SECTION 5. IMPARTIAL ANALYSIS. The Town of Ross Attorney is hereby directed to prepare an impartial analysis of the ballot measure showing the effect of the measure on the existing law and operation of the measure.

SECTION 6. BALLOT ARGUMENT. Pursuant to Article 4, Chapter 3, Division 9 of the Elections Code, an argument in favor of the ballot measure shall be submitted on behalf of the Ross Town Council. The deadline to file arguments to the Ross Town Clerk for or against the measure is August 14, 2026. Arguments shall be submitted to the Town Clerk and shall not exceed 300 words in length. The Town Clerk upon receipt of arguments, and after the filing deadline, shall immediately transmit copies to any known opposing parties who may then submit rebuttals. If one or more arguments are submitted in favor or against the measure, arguments shall be selected pursuant to Elections Code section 9287, and if more than one argument shares the same priority, random selection shall be used.

SECTION 7. REBUTTAL ARGUMENT. The last day for filing rebuttal arguments to the Ross Town Clerk shall be August 21, 2026, with the Town Clerk, and shall not exceed 250 words in length. Pursuant to Elections Code section 9285(a), when the arguments for and against the measure have been selected, the Town Clerk shall send a copy of the argument in favor of the measure to the authors of the argument against the measure, and a copy of an argument against the measure to the authors of the argument in favor of the measure.

SECTION 8. BALLOT FORMAT. The ballots to be used at the election shall be in the form and content as required by law.

SECTION 9. HOURS OF POLLING. The polls for the election shall be opened at 7:00 a.m. on the day of the election, and shall remain open continuously until 8:00 p.m. of the same day at such time when the polls shall be closed.

SECTION 10. REQUESTING CONSOLIDATION OF ELECTIONS. Pursuant to Elections Code section 10403, the Board of Supervisors of the County of Marin is hereby requested to consolidate the general municipal election on Tuesday, November 3, 2026, with the statewide General Election to be held on the same date, provide all services necessary for this election, and print ballots including the ballot measure set forth herein. The election shall be conducted in all respects as if one election, and one form of ballot shall be used.

SECTION 11. NOTICE TO COUNTY OF MARIN. The Town Clerk is hereby authorized and directed to file a certified copy of this Resolution with the Marin County Board of Supervisors and the Registrar of the County of Marin, pursuant to Elections Code section 10403.

SECTION 12. NOTICE OF ELECTION. The Town Clerk is hereby authorized and directed to give notice of the election as required by law.

SECTION 13. CERTIFICATION. The Town Clerk shall certify to the passage and adoption of this Resolution and enter it into the book of original resolutions.

SECTION 14. EXECUTION. The Town Manager is hereby authorized and directed to do any and all things necessary to execute and deliver any and all documents necessary or advisable in order to complete the process for placing the measure on the November 3, 2026, ballot.

SECTION 15. SEVERABILITY. If any section, subsection, sentence, clause, phrase, or portion of this Resolution is for any reason held to be invalid or unconstitutional by the decision of any court, such decision shall not affect the validity of the remaining portions of this Resolution. The Town Council hereby declares that it would have adopted this Resolution and each section, subsection, sentence, clause, and phrase irrespective of the fact that any one or more of same be declared invalid and unconstitutional.

RESOLUTION PASSED AND ADOPTED, at a meeting of the Ross Town Council on the **9th day of July 2026** by the following vote:

AYES:
NOES:
ABSTAIN:
ABSENT:

_____
Julie McMillan, Mayor

ATTEST:

_____
Zach Koblick de León, Town Clerk

EXHIBIT "A"
ORDINANCE

TOWN OF ROSS

ORDINANCE NO. 736
AN ORDINANCE OF THE TOWN OF ROSS, CALIFORNIA, AMENDING CHAPTER 3.30 OF THE ROSS MUNICIPAL CODE TO CONTINUE THE LEVY OF A SPECIAL TAX TO FINANCE PARAMEDIC SERVICES

THE PEOPLE OF THE TOWN OF ROSS, CALIFORNIA DO HEREBY ORDAIN AS FOLLOWS:

Chapter 3.30.020 is hereby amended to read as follows:

"Section 3.30.020 Special Tax Imposed.

A special tax for the purpose specified in Section 3.30.010 of this chapter shall be imposed on all developed parcels of real property in the Town of Ross for each fiscal year, commencing with fiscal year 2027-2028, as follows:

a. Residential Uses: $107.50 per dwelling unit on a parcel for fiscal year 2027-28. Beginning with fiscal year 2027-28 the Town Council may approve an annual increase to said amount not to exceed $4.00 annually to a maximum of $118.00 for fiscal year 2030-31. For the purposes of this chapter, a dwelling unit means a building designed for or occupied by one family, including a dwelling unit under construction. A residential second unit duly registered with the Town of Ross, or any structure accessory to the primary dwelling, which is used for occupancy by family members, occasional guests, or servants, is not a dwelling unit for the purposes of this chapter.

b. Non-Residential Uses: $107.50 per 1,000 square feet of structure on the parcel for fiscal year 2027-28. The Town Council may approve an annual increase to said amount not to exceed $4.00 annually to a maximum of $118.00 for fiscal year 2030-31.

The records of the Marin County Assessor as of March 1st of each year shall determine the use and improvement of each parcel for the calculation of the special tax applicable to that parcel in the following fiscal year.

For the purposes of this chapter, the term "parcel" shall mean a parcel of real property having a separate assessor's parcel number as shown on the last equalized assessment roll of Marin County."

Chapter 3.30.080 is hereby amended to read as follows:

Section 3.30.080 Termination of Provisions.

This chapter shall be null and void as of twelve o'clock midnight, June 30, 2031, and shall have no force and effect whatsoever after said time and date. Notwithstanding the previous sentence, section 3.30.050, relating to the collection and enforcement of liens or obligations for the special tax previously levied hereunder, shall continue in effect until such time as the collection and enforcement procedures have been completed."

Section 1. The appropriations limit of the Town of Ross established under Article XIIIB, Section 6 of the California Constitution shall be increased by the proceeds received from the special tax imposed by this ordinance. Any future increases in the appropriations limit shall be approved by a majority vote of the voters voting thereon.

Section 2. If any provision of this ordinance or the application thereof to any person or circumstances is held invalid or unconstitutional by any court of competent jurisdiction, such invalidity or unconstitutionality shall not affect any other provision or applications, and to this end the provisions of this ordinance are declared to be severable. The Town Council, and the electorate by referendum, do hereby declare that they would have adopted this ordinance and each section, subsection, sentence, clause, phrase, part or portion thereof, irrespective of the fact that any one or more sections, subsections, clauses, phrases, parts or portions thereof, be declared invalid or unconstitutional.

Section 3. This ordinance shall be adopted and become effective only if approved by two-thirds of the voters voting thereon, at an election to be held on November 3, 2026.

Section 4. The Mayor is hereby authorized to attest to the adoption of this ordinance by signing where indicated below.

I hereby certify that the foregoing ordinance was PASSED, APPROVED AND ADOPTED by the people of the Town of Ross voting on the 3rd day of November 2026.

APPROVED:

_____
Julie McMillan, Mayor

ATTEST:

_____
Zach Koblick de León, Town Clerk